Standard Operating Procedure (SOP)

Country Specific Requirements South Korea

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Applicability

Bayer Level:	CH, PH

This document is electronically approved (signatures on the last page)

Distribution Sheet for Quality Regulations

Division/Business Unit ☒ PH ☒ CH

GBS Location
☐ Global Business Services Barcelona
☐ Global Business Services Costa Rica/Brazil
☐ Global Business Services Manila
☐ Global Business Services Gdansk
☐ Global Business Services India
☒ Global Business Services Dalian
☐ Global Business Services Germany

Region/ Country
☐ Global
☒ Specific Country: Korea

Relevance for R&D QMS
☐ Affected
☐ Interface
☒ N/A

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1 Scope and Framework

1.1 Scope

Bayer Country Quality Units are accountable for a GMP compliant Product Technical Complaint Management within their respective countries. Within this responsibility they are supported by the respective Global Business Service in process steps like complaint initiation, forwarding for investigation to the RQU, and final verification including complaint sample management and reimbursement process.

This SOP defines clear guidance to the Global Business Service regarding all country specific requirements.

1.2 Framework

This SOP is based on principles and requirements outlined in SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

2 Abbreviations

AE	Adverse Event
CMO	Contract Manufacturing Organization
CQH	Country Quality Head
CQU	Country Quality Unit
GBS	Global Business Service
PTC	Product Technical Complaint
PV	Pharmacovigilance
RQU	Responsible Quality Unit
SSC	Shared Service Center (Previous name of Global Business Services)

3 Purpose & Process

3.1 Purpose

Country Specific Requirements for South Korea are described in this SOP, regarding e.g. Data Privacy, Sample Handling Process, Reimbursement Process, Contacts, escalation rules.

During the processing of all PTCs by Bayer owned Global Business Service all country specific requirements are considered and followed besides the general complaint handling described in the SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

3.2 General guidance

The employees of the Global Business Services are following SOP during complaint processing in Complaint database on behalf of the Country Quality Units.

3.3 Roles and responsibilities

PTC GBS team

- manages PTCs and suspected falsification and counterfeit on behalf of the CQUs of the legal entity which introduces product into the market (e.g. Marketing Authorization Holder, Distribution license holder)
- Enters PTCs, suspected falsification and counterfeit i and Usability Issues according to defined timelines, into the global complaint database in English language
- forwards all cases that are not PTCs back to the CQU or applicable function for further processing
- performs the initial intake of complaints after receipt and considering the information provided by the PV in case of an AE and/or a medical device (incl. Medical Device constituent of combination product) is involved
- informs the respective PV about all PTCs with a potential associated AE or LODE or potentially reportable medical device complaints, including the unique complaint database number and all relevant follow-up information (e.g. Batch number)
- informs the CQU about PTCs where local authorities are involved, about all potential falsification and counterfeits and any other cases described in the Country Specific SOPs
- checks completeness and accuracy of information (including the photo or video, if available from the complainant) before forwarding the cases to the RQU
- Initiates first contacts with the complainant within first 5 days of receipt of the complaint information to obtain follow-up information asks CQU for any support contacting the complainant if not possible/allowed by GBS (e.g. data privacy, non-hosted language)
- ensures translation of non-hosted languages
- forwards all cases to the respective RQU for further investigation and final assessment
- checks if a complaint sample is available and starts the process to retrieve the sample, documenting these efforts including the number of attempts requesting sample in detail in complaint database
- reviews the case for plausibility and closes the assessed complaint in complaint database
- support the process for reimbursement management
- responds to the complainant, for PTC+AEs in liaison with the PVCH and documents the response in the global complaint database or other cross-referenced system in cooperation with the CQU
- notifies the legal manufacturer of a device and where necessary, the manufacturer's authorized representative and the importer, if applicable.in case of any discussion or doubts contacts the CQH as the first line support

Country Quality Head (CQH) / Country Quality Unit (CQU)	- ensures the appropriate handling of PTCs, and suspected falsified and counterfeit incidents, reported in the respective country including the timely execution of the related activities, particularly for the entry of the cases into complaint database, forwarding them and for responding to the complainant - responds to the complainant, for PTC+AEs in liaison with the PVCH and documents the response in the global complaint database or other cross-referenced system in corporation with the Global Business Services - fulfills all obligations, e.g. PTC related reporting requirements defined by legislations or regulations - oversees and monitors the whole PTC process for products on market of their legal entity in case of delegation to GBS by controlling appropriate Key Performance Indicators according to GSOP 1372 “Perform Country Quality Management Review”.

4 Specific requirements regarding PTC handling

4.1 Country Specific Requirements listed by different topics

Description	Assigned Roles & Document Reference
4.1.1 General Information In South Korea the company operates under one legal entity with distributor status: Bayer Korea Ltd. 23F& 24F, Parc 1 Tower 2, Yeoui-daero 108, Yeongdeungpo-gu, Seoul, South Korea (zip code 07335). GBS located in the city Dalian of China, which perform administrative part of PTC handling following roles and responsibilities.	
4.1.2 Contact list CQU KR: *cqu.kr@bayer.com* **Remark:** Current name and e-mail address of the CQH and the CQH deputy are found on the QINT SharePoint: *https://bayergroup.sharepoint.com/sites/oneqint* Country Quality List	
4.1.3 Escalation Rules The CQH and the CQH deputy should be notified via e-mail (also via generic CQU address if applicable) about any complaint case referring to at least one of the following situations: – Suspected Counterfeit Cases – Any cases involving Health Authorities, Government, Pharmacist association and Custom/Court/Police – Confirmed cases with final risk category “High” and “Medium” - Urgent action requirement from complainants	GBS

Description		Assigned Roles & Document Reference
4.1.4	**Pharmacovigilance cases** If a complaint case is related to any type of Adverse Event, the Pharmacovigilance department has to be informed via the following e-mail address. *pvkorea@bayer.com*	GBS
4.1.5	**Product Samples** Basically, all PTC complaints sample are required in South Korea. Complainant sends the sample to CQU within 5 days after complaint case reported to GBS. CQU is in charge to take pictures and/or send the sample to RQU if necessary. CQU should inform GBS the status of sample as soon as possible before Complaint Database entry completed. If sample received after Complaint Database completed, CQU will update the sample status and/or related information (ex: sample pictures, etc.) in the Complaint Database accordingly and notify the RQU. Blood contaminated sample (Complaint samples of Mirena evo, Jaydess, Kyleena and Nova T containing body fluid or blood which used by customer), Used Anticancer medicine sample (Nexarvar tab, Stivaga tablet, Androcur, Vitrakvi Capsule, Vitrakvi Solution, Nubeqa and other anti-cancer medicine) and Radioactive sample (Xofigo) are not required according to the Article 4: Types of Medical Refuse - Enforcement decree of the Waste Control Act, and Radioactive Waste Control Act.	GBS
4.1.6	**Statement letter** **Acknowledgement Letter when a complaint comes in:** Final response letter is handled by CQU. GBS should inform CQU while case closed.	GBS
4.1.7	**RQU Contact list** A table with all available products in the country and the respective RQU contact names needed for the entry into Complaint Database, is available on SharePoint: go/ptcops. For CH products registration status in the respective country as well as Manufacturing Site are available via SYNAPS: go/synaps. List with the respective RQU contact names are provided by the Divisional Quality Assurance function and available on the SharePoint: PH & RD Responsibilities list: *PH RQU responsible list_HJ.xlsx* CH Responsibilities list: *IQMS_MASTER LIST COMPLAINT RESPONSIBILITIES.xlsx*	GBS
4.1.8	**List of Local Opportunities Products** N/A	
4.1.9	**Data Privacy Requirements** Based on South Korea regulation for retention: Act on Consumer Protection in E-commerce, etc. It is not allowed to enter any private information of complainants (e.g. name, address, phone number, e-mail) into Complaint Database.	

Description	Assigned Roles & Document Reference
4.1.10 Gathering additional information (including obtaining translation) GBS response to send Acknowledgement email to complainants and copy CQU. The receipts email template refers Annex 2.	GBS CQU
4.1.11 Reimbursement and Replacement - GBS will not in charge of all Reimbursement and Replacement. - Replacement should forward to CQU. - Reimbursement should forward to local country. - A table with all contact person in the country is available on Share Point: go/ptcops.	GBS
4.1.12 Mandatory Spot Checks for Translations N/A	GBS
4.1.13 Exceptions and special cases N/A	
4.1.14 Others N/A	

5 External References

N/A

6 Internal References

Doc Label	Doc Type	Title
SSC-PTC-SOP-001	Standard Operating Procedure	Manage Product Technical Complaints and Suspected Counterfeit Incidents in GBS

7 History of Changes

Version	Significant changes with respect to previous version	Effective date
1	New document	2021-11-12
2	# Change the county specific SOP template to current version REGS-DE15-BP-002818 v5.0 # Complaint Receipt Report form to Version 02	2024-10-15
3	# Update Distribution Sheet # Update through all the document reflecting Global SOP-115 version 14.0 updates. # Replace “Dev@Com” with “Complaint Database” # Replace “Risk Category” to “Risk classification” # Replace session 3 roles and responsibility to align with GSOP 115, session 4.0, PTC GBS Team, Country Quality Head (CQH) / Country Quality Unit (CQU) # Upload session 4.1.5 # Update session 4.1.7	See document’s effectivity in IQMS

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